On 5 December, Mistry made another effort to win the support of shareholders of various companies. He sent them a communication and attached an ‘annexure statement’ along with it, which consisted of a ‘letter’ and a note. The ‘letter’ was a fourteen-page document about Mistry’s chairmanship of Tata Sons.

It was a primer on what he claimed were the circumstances under which he had unenthusiastically accepted the chairmanship of Tata Sons, on how the alleged ‘hot spots’ and ‘legacy’ issues connected with Ratan had dragged down the group’s performance, on the vision statement that he had formulated and why he had thought that the government should step into the affairs of the Tata Trusts to ‘remedy and repair breakdown’ in its governance. It was very critical of Ratan. Mistry said: ‘The Tata Group is no one’s personal fiefdom: it does not belong to any individual, not to the trustees of Tata Trusts, not to the Tata Sons directors, and not to the directors of the operating companies’ and that he had acted the way he did because ‘a retired chairman can always feel that his “legacy” is under threat’.

The notes were company specific. They primarily contained the steps Mistry had taken to improve the prospects of each and a graph that compared the performance of the specific company and its peers with the Sensex. The achievements claimed were, however, selectively benchmarked to highlight the hiatus in their comparative achievements. That it was the result of a carefully planned exercise was apparent from the select criteria used in assessing their performance. In four cases (IHCL, Tata Chemicals, Tata Motors and TCS) the explanatory note said that the share prices of the companies did ‘better than the BSE Sensex’ in the last four years when Mistry was at the helm. The note on Tata Power said that the company had done ‘better than most of its competitors’. Referring to Tata Steel, the claim was that it was ‘poised to deliver sustainable profitable growth for the long term’.

But when the performance of these six companies during the period 28 December 2007–31 December 2012 (a part of the period when Ratan was chairman Tata Sons) is analysed, then it can be concluded that the average of their absolute percentage growth was 17.44 per cent while the absolute change in the Sensex was -4.24 per cent. Therefore, the six companies on the average outperformed the Sensex by nearly 22 per cent during the aforesaid period of Ratan’s chairmanship.